**TOWN OF MOUNT PLEASANT, SOUTH CAROLINA**
**BOARD OF ZONING APPEALS**
**AUGUST 28, 2023**
**MINUTES**

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Julian Hopkins.
Absent: Molly Hall
Staff: Kara Browder, James Ward, Chris Swalhah, Lynnette Lynes

Mr. Wood called the meeting to order at 6:03 pm.

**A. Approval of Agenda**

*Ms. Stevens moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.*

**B. Approval of Minutes**

*Mr. Hopkins moved for approval of the minutes. Ms. Stevens seconded the motion. All in favor.*

**C. Public Comment**
**D. General Correspondence**

There being no comments or correspondence, Mr. Wood continued with the agenda.

**E. Explanation of Procedures**
**F. Administration of Oath**

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

**G. Business**

1. **Case V-38-21, 851 Woodgreen Circle, TMS 562-01-00-112. Request for a one-year vested rights extension in accordance with §156.049.**

Ms. Browder reviewed staff comments with the Board.

▶ *Mr. Hopkins moved for approval of the request. Ms. Stevens seconded the motion. All in favor.*

**2. Case V-34-23, 1136 Meadowcroft Lane, TMS #532-08-00-120. Request for relief from the strict application of §156.111(A)(1) to allow a 7-inch encroachment into the rear setback of an accessory structure. The ordinance requires a 6-foot rear setback for accessory structures for this parcel.**

▶ Ms. Browder reviewed staff comments with the Board.

▶ Mr. Trey Brown, representative for the applicant, reviewed the request with the Board.

▶ There being no comments, Mr. Wood moved to Board questions.

▶ Mr. Wood closed public comment.

▶ *Mr. Branch moved for approval based on the findings that criteria being met as footers passed inspection; there is minimal impact due to being a single structure and will not impact neighbors. Mr. Barrow seconded the motion. All in favor.*

**3. Case V-35-23, 248 Ponsbury Road, TMS #535-06-00-309. Request for relief from the strict application of the I'ON Planned Development Ordinance to allow a building coverage of 53.7% and encroachments into both side setbacks ranging from 9-inches to 1-foot 9 ½- inches.**

▶ Ms. Browder reviewed staff comments with the Board.

▶ Mr.Richard Haehl and Ms. Millie Haehl, owners, reviewed the request with the Board.

▶ Ms. Mary Martin, 244 Ponsbury Road, suggested that the survey completed for the adjacent property was not correct. She suggested that this should be corrected before allowing the construction to be completed.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for approval based on the findings that the criteria has been met in that there are extraordinary conditions, does not apply to other properties, denial would unreasonably restrict the use of the property, and would not be a detriment to the neighborhood because of the designation error in the classification of the type of lot. Mr. Butner seconded the motion. All in favor.*

**4. Case V-36-23, 111 Hyer Street, TMS #532-09-00-059. Request for relief from the strict application of §156.225(C) to allow the removal of a 32-inch Historic Magnolia.**

- Ms. Browder reviewed staff comments with the Board.

- Mr. Chris Sands and Ms. Liz Sands, owners, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that it meets the criteria and is supported by the arborist report that the tree is a hazard, and there are a significant amount of other trees on the lot being saved. Mr. Butner seconded the motion. Motion passed on a 4 to 2 vote with Mr. Butner, Mr. Branch, Ms. Stevens, and Mr. Wood in favor; Mr. Barrow and Mr. Hopkins opposed.*

**5. Case V-37-23, 653 Long Point Road, TMS #556-00-00-525. Request for relief from the strict application of §156.312(D)(1)(a)(2)(a) to allow a 23-foot encroachment into the required 50-foot buffer.**

- Ms. Browder reviewed staff comments with the Board.

- Mr. Richard Scott, Engineer for the applicant, reviewed the request with the Board.

- *Ms. Stevens moved for approval of submittal of additional renderings. Mr. Butner seconded the motion. All in favor.*

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that it has not met the criteria that there are no extraordinary conditions as the conditions were created by the applicant, denial would not unreasonably restrict utilization of the property, but the amount of business has increased, and approval would be a detriment to the neighborhood if approved as it would increase traffic on surrounding roadways. Mr. Hopkins seconded the motion. Motion failed on a tie vote with Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner, Mr. Branch, and Ms. Stevens opposed.*

- The Board deliberated to determine if a majority vote could be determined.

- *Mr. Barrow moved for denial based on the findings previously stated in the previous motion. Mr. Hopkins seconded the motion. Motion failed on a tie vote with Mr. Barrow, Mr. Hopkins, and Mr. Wood in favor; Mr. Butner, Mr. Branch, and Ms. Stevens opposed.*

- There being no definitive decision made, a new hearing would be scheduled for the next meeting.

The Board convened for a short break at 7:25 pm and reconvened at 7:30 pm.

6. **Case V-38-23, 824 Armsway Street, TMS #532-03-00-057. Request for relief from the strict application of §156.111(A) to allow a 3.8-foot encroachment into the rear setback of an accessory structure. The ordinance requires a 6-foot rear setback for accessory structures on this parcel.**

- Ms. Browder reviewed staff comments with the Board.

- Mr. Travis Rogers, representative for the applicant, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

▶ *Mr. Butner moved for approval based on the findings that the request meets the criteria as was an error of the Town for not catching the encroachment during the inspection process and it was no fault of the contractor as the property pin was incorrectly located. Mr. Hopkins seconded the motion. All in favor.*

**7. Case V-39-23, 1316 Penshell Place, TMS #560-06-00-222. Request for relief from the strict application of §156.111(A)(1) to allow a 1.39-foot encroachment into the rear setback of an accessory structure. The ordinance requires a 6-foot rear setback for accessory structures on this parcel.**

▶ Ms. Browder reviewed staff comments with the Board.

Mr. Swalhah entered at this time (7:40 pm).

▶ Ms. Emily Karafa, applicant, reviewed the request with the Board.

▶ Mr. Hilton Smith, 1312 Penshell, Watermark Architectural Board member, suggested that different setbacks were relayed to him when talking with staff. He stated that there have been other applications that were denied a variance for encroachment into the setback. He expressed concern that this would adversely affect his property.

Ms. Karafa rebutted that she was not aware of the ten foot setback but was told that it was a six foot setback. She stated that the pool equipment was allowed to be on the side.

Mr. Wood administered the oath to Mr. Swalhah. Mr. Swalhah explained the error with the setbacks.

▶ Mr. Wood closed public comment.

▶ *Mr. Branch moved for approval based on the findings that the criteria has been met as it was an error on the part of the Town, with the condition an opaque landscape screen is installed to be approved by staff and the HOA to minimize the impact to neighbors. Ms. Stevens seconded the motion. All in favor.*

**H. Approval of Final Orders**

The Board signed final orders.

There being no further business, the meting adjourned at 7:57 pm.

Submitted by,
L. Lynes
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